Institution **University of Chicago Law School**
Course **S25-Con Law I-Fahey-Open Laptop**

Event **NA**

Exam Mode **OPEN LAPTOP**

Exam ID [redacted]

Count(s)	Word(s)	Char(s)	Char(s) (WS)
Section 1	**1610**	**9071**	**10662**
Section 2	**369**	**2000**	**2368**
Section 3	**421**	**2251**	**2670**
Total	**2400**	**13322**	**15700**

Answer-to-Question-_1_

Standing should not bar suit because injured law enforcement officers (LEOs) may sue (Art. 3.2). Political question doctrine also should not bar suit because courts have ruled on similar federalism and inter-branch conflict issues before (e.g. *Printz*).

Immigration Assistance Reform Act (IARA)

IARA is not procedurally unconstitutional (*Chadha*). The issues are (1) whether Congress has the power to pass IARA, (2) whether Section 2(B) violates federalist principles, and (3) whether 2(B) violates Native Nations' sovereignty. The answers should be (1) yes (2) yes under *Printz*, and (3) yes under *Lone Wolf*.

Enumerated Power

Congress easily has plenary power to legislate on immigration, which cross-deputizing immigration agents falls under both topically and as "legitimately control[ling] all individuals... within the American territory" towards the ends of sovereignty as Necessary and Proper means(*Chae Chan Ping*).

Federalism

States and municipalities will say that, under *Printz* and *New York*'s anti-commandeering rules, Congress cannot direct state and local LEOs to participate in IARA (cities are treated like states for federalist analysis purposes). LEOs "must provide" assistance upon federal request, so there is no state consent present - and state representatives passing it in Congress does not count (O'Connor concurrence in *Printz*). IARA also may count as making states spend money (assuming states/municipalities must pay for the extra hours worked) and as making states take liabilities (similar to *New York*'s Take Title provision, LEOs may be sued for various reasons). Under *Printz*, IARA would also violate separation of power by allowing Congress to side-step the President's execution power (Art. 2) and vest it in LEOs without any accountability chain to the President. And the President cannot consent to a violation of separation of powers (*New York, Chadha*).

Congress may respond that it is requesting states to act without firm consequences for not complying, as there are no punitive provisions in the Act. It may also point to the past practice of DHS delegating state and local law enforcement as federal immigration agents (Fahey, *Federalism by Contract*). However, states will rebut that those cross-deputizations were consented to as Memoranda of Agreement.

States may also argue that regulating police officers is a traditional sphere of state sovereignty over police powers (*National League*). This is weak because it was overruled in *Garcia* for being an unworkable test.

Congress' stronger argument is that, under *Garcia*, the IARA is not unconstitutional because it targets "private security officers" as well as state LEOs - it is not regulating states-qua-state. Thus, without any procedural unconstitutionality, the political process where states advocate for themselves in Congress (and passed this law) acts as sufficient protection for states - courts need not step in to protect some substantive sovereign sphere (and should not mis-cite *Coyle* to do so).

States may argue that regardless, the Act violates Federalist values outlined in Kennedy's concurrence in *Lopez*. When officers are cross-deputized to federal agent functions, accountability is blurred because citizens will be confused on whether state or federal officials should be attributed the blame or voted out - especially when states already possess some immigration power. Federalism also wants to prevent tyranny by dispersing power into a double-layer of constraint.

Congress may save IARA by amending it to require contracting the cross-deputization (*Printz*, O'Connor) or possibly by paying for it (*Printz*, Souter's Takings Clause argument).

Native Nations

Congress has plenary power over Native Nations, including Native individuals (*Lone Wolf*). There is no evidence IARA is not acting in good faith.

Native Nations will argue that they have the right to self-govern (*Montana*), and that their LEOs are crucial to governance functions because they maintain and execute law.

They may alternatively argue that the Act requires investigating, arresting, and detaining "individuals lawfully suspected of immigration violations," which may include non-Natives - and that under *Montana*, they cannot exercise power over non-Natives because because targeting immigration violators is unrelated to protecting their own governance or internal relations.

Congress could respond by saying immigration concerns have serious effect on internal relations, citing security issues. It could also advance a formalist argument *Montana* only set that limitation on Native Nations passing *laws* regulating non-Natives, and so the holding has no effect on exercising police power.

Native Nations could attempt to import the anti-Commandeering tests *supra* by analogy, which would be interesting. However, those cases are not authoritative on Native Nations, and the Constitution textually and structurally contemplates less protections for them than states; especially given *Cherokee Nation*'s "ward to his guardian" finding.

Executive Order (EO)

This EO should be unconstitutional for departing from *Cox*.

The President has judicially unreviewable prosecutorial discretion (Art. 2.3) to decline to prosecute a case and thus decline to enforce federal criminal law (*Cox*).

However, states or Native Nations may strongly point out that *Cox* only held the above for case-by-case bases - as in, *Cox* allowed absolute prosecutorial discretion for a single case concerning one Black voter's rights, whereas here the EO is a blanket rule that declines to prosecute "any federal crime" for entities not complying with the IARA. Under *Hamdi* this issue may involve the President attempting to exercise her national security duties fully, to the detriment of individual rights - so courts must step in to act as a shield to such an arbitrary exercise of power.

The President may respond that her Take Care power is absolute, especially given the necessity for the unitary and energetic Executive to speak with "one voice" to exercise "decision, activity, secrecy, and dispatch" regarding the execution of Congress' immigration law (*Seila* quoting Hamilton). She is only accountable to the electorate (*Cox*, Wisdom's Concurrence).

She may also argue that the EO stems from her aggregate war powers as Commander in Chief and diplomacy powers (Art. 2.2). Making immigration reform manages relations with foreign nations and may prevent escalation of international tensions to war (*see, e.g. Chae Chan Ping*). She could make a stretch argument that the IARA helps recognize foreign nations as separate, sovereign entities with their own citizens (*Zivotofsky*).

However, courts should be concerned with inverting war powers to peace time powers; emergency powers beget emergencies (*Youngstown*, Douglass Concurrence).

Lastly, under *Youngstown* Zone 2, the President is acting without express Congressional authorization but without obvious conflict. Opponents to the EO will say that, balancing the real world context, it seems unconstitutional for the President to try and enforce or legislate this way; see below for further separation of powers analysis.

The President could try to argue that she is acting with implied Congressional authorization because she's trying to help execute IARA and is thus in Zone 1, at maximum power with strong presumption of constitutionality. This is a weak argument because Congress has not spoken through law or even implied that it is agreeing with the President's EO.

Her strongest argument goes back to the first point - the Executive's prosecutorial discretion is absolute, and there is no overlap with Congress' power here.

IARA + EO

Taken together, there are several constitutional issues with the IARA and EO. The EO should fail for lacking bicameralism and presentment, and also for coercing states.

Bicameralism and Presentment

Arguably, the EO effectively legislates by setting "Compliance Incentives" to the IARA - basically adding a provision to it. Legislative acts are subject to Art. 1.7 bicameralism and presentment, and the EO did not pass through any Congressional house (*Chadha*).

Presuming the EO is unconstitutional for departing from *Cox*'s limitations, it is also unconstitutional under *Chadha* because it is unlike the Attorney General's suspensions there. Those suspensions were held not to be lawmaking because they were judicial acts of case-by-case as-applied power, which is less durable than legislation. The EO is a blanket exercise of prosecution power for the means of enforcing an unrelated Congressional law (see federalism analysis below).

Federalism

Although it is an unconventional form of legislation, states may argue that the IARA and EO create a cooperative program, exchanging non-Spending Powers, which is coercive under *Steward Machine*.

There is no meaninfully voluntary state participation because the EO's "Compliance Incentive" is coercive. If we import *NFIB's* reasoning by analogy, then prosecution of "any" federal crimes is topically unrelated to the immigration reform purposes of IARA. The President may argue that violating immigration law is a federal crime, so it is related - but the states should rightfully rebut that even so, the EO is vastly over-inclusive. It could have been narrowed to apply only to immigration crimes, but applying to all federal crimes is a large 'penalty', even if not an economic one.

The President may also argue that, like in *Steward Machine*, without the EO states would not uniformly comply and so it is solving a collective action program. States are capable political actors with the free will to respond to incentives or temptations.

States may rebut that states may still not comply, and the EO 'incentives' would then put the states on unequal "footing" where the Executive is only prosecuting crimes in some states and not others (*Coyle*). They may also argue that, again under analogy to conditional grants, they did not receive clear notice of the possibility that non-compliance with IARA would come with additional conditions (*Pennhurst*). The EO represents a shift in kind and rests on a completely different structure (federal prosecutorial power) than the IARA (*NFIB*).

A tricky part of this analysis is that federalism contemplates balancing state-federal government power, not exactly state-Executive power. However, we should be able to import 10th Amendment principles because Kennedy's accountability rationale still applies. By punishing non-compliance with a Congressional Act, the EO obfuscates accountability because citizens don't understand whether to vote out state officials for non-compliance, Congressional reps for passing the law, or even the President for passing the EO.

----------ANSWER-1-ABOVE----------

---------DO-NOT-EDIT-THIS-DIVIDER----------

----------ANSWER-2-BELOW----------

Answer-to-Question-_2_

No, the VP is not immune.

First, the VP's duties are functionally completely different than the President's. Although they run together and their terms end on January 20th (20th Amendment), the similarities end there. She is president of the Senate and has no vote except to tie-break (Art. 1.3).

Second and consequently, the rationales of *Trump*, applying *Youngstown*, do not apply to the VP.

She may have the 'solely executive powers' of tie-breaking the Senate, which effectively occasionaly gives her 'concurrent' voting power, but she shares no real enumerated functions with Congress. Most importantly, criminal law is not a uniquely problemative method of narrowing the delegation of power to her. Her powers are not of "unrivaled gravity and breadth" (*Trump*, quoting *Trump v. Vance*).

There is no "unified and energetic" necessity in the VP, who is neither Commander in Chief nor a diplomatic masthead. You could argue that the President and VP represent a single platform and administration, and the VP can advance policy objectives which may require a "single voice" (*Seila*). However, these are weak powers which don't warrant the same deference. Additionally, the structural argument of balancing a bicameral legislature with a single person doesn't apply because the VP does not sign bills into law.

Criminal prosecution would not chill VP duties - unlike responding to war or national emergencies, the VP doesn't need maximal ability to deal "fearlessly and impartially with the duties of [her] office" as Senate

President. In fact, this would go against the purposefuly frictional and slow role of Congress. She does not have absolute immunity for damages liability from official acts (*Fitzgerald*). Her roles are more similar to the areas of Presidential duty that actually *are* subject to judicial review, such as testifying in Congress (*Burr*) or being subpoenaed for documents (*Nixon*).

As such, without the unitary Executive justifications, Sotomayor's dissent in *Trump* becomes even stronger as applied to VPs. There is no express immunity for the VP. The VP may also be impeached, and Art. 2.4 contemplates criminal liabilities post-conviction.

Additionally, because VPs do not have term limits and could also run subsequently for President, they already lack some accountability mechanisms which are in place to balance the President's criminal immunity.

----------ANSWER-2-ABOVE----------

---------DO-NOT-EDIT-THIS-DIVIDER----------

----------ANSWER-3-BELOW----------

Answer-to-Question-_3_

The 10th Amendment may contemplate residual power "to the people" for several reasons.

At the base level, the Constitution's preamble declaration of "We the People" shows that all ensuing vesting clauses in the Constitution are in fact vested, not just by a document, but by the people who wrote it and by consent of the people whom it governs (*McCulloch*). The 10th Amendment may serve a tautological purpose of simply reminding us that the power of every coordinate branch of government from the federal to the state level is undergirded by individuals.

It also strengthens the fact that the Framers, in rejecting the New Jersey Plan, chose the Virginia Plan to legislate directly on individuals without states as intermediaries (*New York*). The Articles of Confederation failed because the federal government was too weak when acting as only a forum for state governance - the 10th Amendment thus ensures that people have some residual power to provide protection against Congress.

As applied to federalism principles, it declares the power of individuals as supporting state powers. For example, accountability, tyranny, and laboratory rationales all depend on the people as vehicles of rights,

voting power, and choice. Powell's dissent in *Garcia* points to state sovereignty's basis coming from citizen loyalty to states, as balanced against the federal government. As such, federalism's justifications cannot exist without the very people its function derives from and utility protects.

Structurally, just as the Amendment ensures that unenumerated and unprohibited powers to federal government by the Articles are vested in states, it also ensures that unenumerated powers and rights to the people by the Bill of Rights are still retained by them. Rights vest power to sue over such rights.

Substantively, it may buttress the right of people to make Constitutional Amendments which vest novel powers to the government - as long as they're not prohibited or otherwise delegated, they may be exercised.

It also allows the Constitution to serve as a Great Outline which is adaptable in order to be enduring, rebutting the argument that it merely serves as a treaty between states. Although secession is unconstitutional (*Texas*), the Union may still remain perpetual if people decide to organize under a non-State structure. The US has territories such as Puerto Rico, and may require different modes of organization in the future. For example, although radical, if people one day decided to abolish states altogether and live communally, or to stop calling states "states," the 10th Amendment would allow the Constitution to adapt and apply to such novel circumstances.